

Circumstances], and Issue No. Four [Plaintiff's Second Cause of Action for Battery Fails Given no Excessive Force was Used], the Motion for Summary Adjudication is likewise denied based upon the same Undisputed Material Facts cited above. In regard to Issue Three [Plaintiff's Theory for Denial of Medical Care Under Her First Cause of Action Must be Dismissed Because Plaintiff Lacks Sufficient Facts to Support Her Claim], the Court grants Defendants' Motion in this regard, finding no triable issue of material fact exists [See UMF Nos. 61, 62; Index of Exhibits in Support of Defendants City of Gridley and Anthony Lara's Motion for Summary Judgment or, in the Alternative, Summary Adjudication at Exhibits D and E; Requests for Admission Nos. 2 and 3, and Responses thereto]. Counsel for the Defendant shall prepare and submit a form of order consistent with this ruling within two weeks.

9. 24CV02857 PLATTS, TOBIAS, II ET AL V. JOHNSON, MARK ET AL

EVENT: Defendant's Motion to Compel Further Responses to Requests for Admissions, Set One, and Form Interrogatories, Set One, Request for Monetary, Evidentiary and Terminating Sanctions

Defendants have failed to include a Separate Statement in compliance with California Rules of Court Rule 3.1345(a), and the Motion is thus continued to July 1, 2026 at 9:00 a.m. for the filing of a Separate Statement.

10. 25CV00744 FISHER, JEFF V. FISHER, JENNIFER

EVENT: Amended Motion for Stay of Enforcement Pending Appeal

While the notice period complies with *Code of Civil Procedure* §1005, the proof of service showing service by email on May 8, 2026, service was made on Defendant's prior counsel – Leonard C. Hart Nibbrig. However, on May 6, 2026, Defendant filed a Substitution of Attorney wherein Mr. Nibbrig substituted out, and Defendant Jennifer Fisher, indicated she would be proceeding in pro per. There is no evidence that the Motion was served on Jennifer Fisher and the Court therefore continues this matter to July 1, 2026 at 9:00 a.m. to allow for proper notice. Plaintiff Jeff Fisher is ordered to serve a copy of the Amended Motion with notice of the new hearing date on Defendant Jennifer Fisher, and file with the Court a proof of service.

11. 25CV04054 BLOW, TRAVIS ET AL V. MENTUS, ANDREY ET AL

EVENT: Defendants' Motion to Vacate Entry of Default

Defendants/Cross-Defendants Ilya Lutsik; Anatoliy Semenovich Lutsik; and Lutsik Construction and Design, Inc.'s (collectively "Cross-Defendants" herein) Request for Judicial Notice is granted. The Court finds that Cross-Defendants have satisfied the statutory requirements for relief under both the mandatory and discretionary relief provisions of *Code of Civil Procedure* §473(b) and the Motion to Vacate Entry of Default is granted. The Default entered on April 17, 2026 is set aside and Cross-Defendants